

lodged and will be executed.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Motion for Summary Judgment: Defendant Good News Rescue Mission ("Good News") moves for summary judgment as to all claims asserted against it in both the Sims action (Case No. 208112) and the consolidated Ceremony action (Case No. 0208573). The motion is brought on the ground that Good News did not own, possess, or control the property where the October 8, 2024 attacks occurred, and therefore owed no duty of care to any Plaintiff as a matter of law. Plaintiff Eugene Evans Sims opposes the motion. The Ceremony Plaintiffs have not filed a separate opposition. The Court confirms that the Sims and Ceremony actions have been consolidated by stipulation of all parties and Order of this Court dated May 5, 2026. The instant ruling applies to Good News' motion as to all claims in both actions.

As a threshold matter, Plaintiff failed to file a Separate Statement of Disputed and Undisputed Material Facts as required by Code of Civil Procedure § 437c(b)(3) and California Rules of Court, rule 3.1350. The Separate Statement requirement is mandatory for both the moving and opposing party, and its purpose is to afford due process to the parties and to permit the Court to focus efficiently on whether material facts are truly in dispute. *North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31. Failure to comply "may constitute sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c(b)(3).) Because Plaintiff failed to file the required Separate Statement, Good News' Undisputed Material Facts ("UMFs") are deemed undisputed for purposes of this motion. The Court will nonetheless address the evidence and arguments raised in Plaintiff's opposition in the interest of completeness.

Standard for Summary Judgment: "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"The trial court may grant summary judgment if there is no triable issue of material fact and the issues raised by the pleadings may be decided as a matter of law. (Code Civ. Proc., § 437c, subds. (c), (f) A defendant moving for summary judgment satisfies its burden "by showing one or more elements of the cause of action in question cannot be established or there is a complete defense to that cause of action. If the defendant meets this initial burden, the opposing party must then make a *prima facie* showing of the existence of a triable issue of material fact. [Citation.] [¶] ... We strictly construe the moving party's affidavits and liberally construe the opposing party's affidavits. We accept as undisputed facts only those portions of the moving party's evidence that are not contradicted by the opposing party's evidence." (*City of San Diego v. Superior Court* (2006) 137 Cal.App.4th 21, 25, 40 Cal.Rptr.3d 26.) Thus, "[w]hen deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467, 71 Cal.Rptr.3d 707.) *RND Contractors, Inc. v. Superior Ct.* (2025) 112 Cal. App. 5th 697, 702.